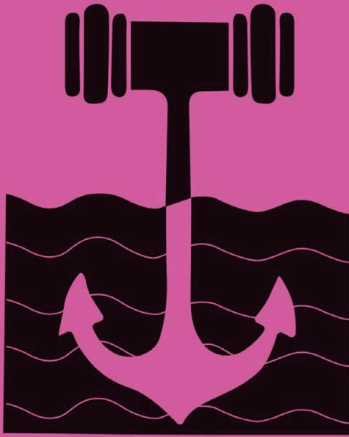




THE LAW OF THE SEA

THE *LEX RHODIA* (500 BCE–300 BCE)

IN CONTEXT

FOCUS

Maritime law

BEFORE

900–500 BCE Greeks from the island of Rhodes establish long-range trade links across the Mediterranean Sea and establish colonies in Sicily and Lycia (western Turkey).

AFTER

c. 408 BCE The three city-states of Rhodes—Lindos, Ialysos, and Camirus—unite as one federal state.

146 BCE–44 CE The Romans conquer all the lands around the Mediterranean Sea, creating a single state, which is subject to Roman law.

533 CE Byzantine Emperor Justinian I's summary of Roman law, the *Digest*, is published.

c. 700 CE *Nomos Rhodion Nautikos* (Rhodian Sea Law) is issued. It remains influential until the 12th or 13th century.

The *Lex Rhodia* (Law of Rhodes) is the earliest known code of maritime law. It developed during Greece's Classical Age (500 BCE–300 BCE). The Greek island of Rhodes was one of the wealthiest seafaring states of the eastern Mediterranean. The sea law was so comprehensive that it was adopted by other Greek states and

colonies, from Spain to the Black Sea. It also influenced Roman law and provided an agreed accepted method for resolving maritime disputes across the Mediterranean.

Law of jettison

One part of the code that survives, in Emperor Justinian's *Digest* (533 CE), concerns the jettison of cargo by ships in distress and states that, "... if the cargo has been jettisoned in order to lighten a ship, the sacrifice for the common good must be made good by common contribution." This principle of sharing losses, called "general average," still applies in maritime law. Such was the prestige of the *Lex Rhodia* that when the Byzantine Empire issued a new maritime code in c. 700 CE, it was called *Nomos Rhodion Nautikos* (Rhodian Sea Law). ■



The Colossus of Rhodes was one of the Seven Wonders of the Ancient World. Erected in 280 BCE, this huge statue of the sun god Helios greeted sailors entering the harbor at Rhodes.

See also: The *Lex Aquilia* 34 ■ Ulpian the Jurist 36–37 ■ The *Lex Mercatoria* 74–77 ■ The World Trade Organization 278–283